



OFFICE OF THE POLICE COMMISSIONER

ONE POLICE PLAZA • ROOM 1400

November 18, 2025

Memorandum for: Deputy Commissioner, Trials

Re: **Detective Richard Zimmer**
Tax Registry No. 956082
050 Detective Squad
Disciplinary Case No. 2023-28610
PODS Case No. C-031640

The above-named member of the service appeared before Assistant Deputy Commissioner Anne E. Stone on September 23, 2025, and was charged with the following:

DISCIPLINARY CASE NO. 2023-28610 (C-031640)

1. Said Detective Richard Zimmer, while off-duty and assigned to the 50 Precinct Detective Squad, on or about May 11, 2023, in Westchester County, New York, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Detective Zimmer wrongfully displayed his firearm during a traffic dispute. (*As amended*)

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

2. Said Detective Richard Zimmer, while off-duty and assigned to the 50 Precinct Detective Squad, on or about and between May 11, 2023 to May 22, 2023, in Westchester County, New York, wrongfully failed to promptly notify the Operations Unit of his involvement in an unusual police occurrence. (*As amended*)

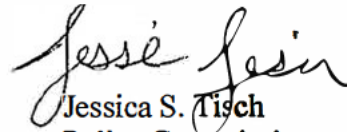
P.G. 212-32, Page 1, Note 1

**OFF-DUTY INCIDENTS
INVOLVING UNIFORMED
MEMBERS OF SERVICE**

In a Memorandum dated October 15, 2025, Assistant Deputy Commissioner Stone found Detective Zimmer Guilty of Specification Nos. 1 and 2, after having pled Guilty to all charges in Disciplinary Case No. 2023-28610 (PODS Case No. C-031640). Having read the Memorandum and analyzed the facts of this matter, I approve the findings but disapprove the penalty.

I have considered the totality of the circumstances and issues concerning the misconduct for which Detective Zimmer has been found Guilty and deem that a greater penalty is warranted.

It is therefore directed that Detective Zimmer forfeit thirty (30) suspension days already served, as a disciplinary penalty.


Jessica S. Tisch
Police Commissioner



POLICE DEPARTMENT

October 15, 2025

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-031640
Detective Richard Zimmer	:	
Tax Registry No. 956082	:	
272-050 Detective Squad	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Bria Carr, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: James Moschella, Esq.
Karasyk & Moschella, LLP
233 Broadway, Suite 2340
New York, NY 10279

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Detective Richard Zimmer, while off duty and assigned to the 50 Precinct Detective Squad, on or about May 11, 2023, in Westchester County, New York, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Detective Zimmer wrongfully displayed his firearm during a traffic dispute. (*As amended*)

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P.G. 212-32 Page 1, Note 1

OFF-DUTY INCIDENTS
INVOLVING UNIFORMED
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REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on September 23, 2025. Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. The Department entered into evidence the transcript and audio recording of the New York State Police interrogation of Respondent. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, and in accordance with his plea, I find Respondent guilty of both specifications. I recommend that Respondent forfeit twenty (20) suspension days previously served on pre-trial suspension, and that the additional ten (10) suspension days served be restored to him.¹

¹ In June 2023, Respondent was suspended for thirty days in connection with this incident. The Disciplinary Matrix sets forth that, "If a member of the service was immediately suspended from duty during the pendency of an investigation, the forfeiture of suspension days, imposed prior to the disposition of the case, may be applied as part of the final disciplinary penalty." (Matrix, p.15)

SUMMARY OF EVIDENCE IN MITIGATION

Respondent pled guilty to wrongfully displaying his firearm during an off-duty traffic dispute, as well as failing to report the incident to the Department in a timely manner. During the mitigation hearing, Respondent recounted that on May 11, 2023, he was driving a Nissan Rogue northbound on the Sprain Brook Parkway in Westchester County after spending his day off with friends in the Bronx. He explained that the highway consisted of three lanes, and he was in the far left lane, moving at about 60-65 miles per hour. Respondent testified that he saw several cars driving fast, weaving in and out of traffic, and he believed they were racing each other.

Respondent recalled looking in his rearview mirror and seeing a red BMW sedan, also in the left lane, coming up behind his car at a high rate of speed. Respondent contended that the car was approaching so fast that he “braced for impact” in case it collided with his vehicle. (Tr. 21-26, 48)

According to Respondent, he put on his turn signal and attempted to move his car into the middle lane to allow the red car to proceed. He was unable to do so immediately because of the flow of traffic. Respondent explained that after a few more seconds, during which the red car continued to tailgate his vehicle, he saw a break in traffic and began to move towards the middle lane. At the same time, the red car also moved to the right. Both vehicles then attempted to get back into the left lane, with Respondent finally settling in the middle lane and the red car in the left. (Tr. 24-26)

Respondent testified that, although the passing lane was now clear, the red car “maintained his car window to pretty much my window.” He rolled down his window and held out his detective shield while yelling, “I’m a police officer, stop, pull over.” Respondent stated that the windows of the red car were so heavily tinted that he could not see inside. He recalled

the passenger window lowering and he observed two people, a male driving and a female passenger, in the vehicle. Respondent contended that the driver leaned over the passenger towards Respondent with his arm extended and his hand in a fist. Respondent explained that he quickly dropped his shield from his left hand into his lap and pulled his firearm straight up from its holster with his right. Respondent admitted that he did not see a weapon in the driver's hand. However, Respondent claimed that he drew his gun because he was fearful, based on the aggressive driving and the BMW remaining next to Respondent's car, that the other man might be armed. Respondent denied intentionally displaying the gun to scare the individuals in the other car. However, he acknowledged that it was possible that he had pulled it up high enough that they were able to see it. Shortly afterwards, the red car increased speed and drove away from Respondent. (Tr. 24, 27-35, 59-60)

Respondent recounted that in the immediate aftermath of this incident, he pulled into the right lane to calm down because he "almost got killed here." Although he was "scared and a little bit upset," Respondent stated that he did not pull to the side of the road to stop his vehicle. Instead, he continued driving home. He admitted that he did not call 911, nor did he make any notifications about the altercation to the NYPD. Respondent asserted that he did not do so because he was too "frazzled" to take down any license plate information and did not have a good description of the vehicle or of the people inside. (Tr. 26-27, 35-38, 58-59)

The occupants of the red sedan called 911 to report the interaction, providing the Nissan Rogue's license plate number. The New York State Police commenced an investigation and discovered that the car was registered to a company owned by Respondent's father. According to Respondent, as soon as he learned that state troopers were attempting to contact him, he notified the NYPD's Operations Unit about the incident. He also called the New York State Trooper

investigating the incident and was interviewed on May 26, 2023. Respondent was subsequently arrested for Menacing in the Second Degree, a class A misdemeanor, and was suspended without pay for thirty days. Ultimately, he pled guilty to Disorderly Conduct, a violation, and agreed to pay court fees. (Tr. 38-43; Dept. Ex. 1A at 3, 6)

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Disciplinary Matrix"), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on January 8, 2014, has pled guilty to, and accordingly has been found Guilty of, wrongfully displaying his firearm during an off-duty traffic altercation and failing to report the incident to the Department in a timely manner. The Department Advocate has recommended the forfeiture of fifty penalty days (thirty suspension days already served and twenty vacation days) and one year of dismissal probation. They argue that because Respondent's actions resulted in his arrest, an aggravated penalty is warranted. Counsel for Respondent argued that his exemplary employment history, the numerous character letters submitted on his behalf, as well as his voluntary cooperation with the New York State Police investigation into this matter, are mitigating factors. For the reasons set forth below, I find that there are no aggravating factors before the tribunal, nor are there any facts which warrant mitigation.

According to the Disciplinary Matrix, the presumptive penalty for wrongfully displaying a firearm while off duty is the forfeiture of 15 penalty days. The presumptive penalty for failure to notify the Department of involvement in an unusual police occurrence is five penalty days. (Matrix, p. 48)

The Department Advocate argued that exhibiting a weapon while off duty is serious misconduct and alleged that Respondent intended to scare the occupants of the other car by showing them his firearm. Accordingly, they have requested an aggravated penalty far higher than that contemplated by the Disciplinary Matrix. Unlike some other types of misconduct, the Matrix specifically addresses wrongfully displaying a firearm while off duty. The presumptive penalty takes into account that doing so is inherently dangerous and the misconduct is serious. No testimony or hearsay statements from the complainants were presented to contradict Respondent's account of the incident or give additional information to support the imposition of an aggravated penalty. In addition, no evidence was presented which would support an aggravated penalty for failure to report the incident. Although not done immediately, Respondent eventually made the proper notifications.

On the other hand, Respondent has not provided persuasive evidence that mitigation would be appropriate in this matter. While Respondent cooperated with the investigation of the New York State Police, presumably he did so in the hope that he could avoid arrest by voluntarily sharing his version of events. I reviewed his employment record and note the high ratings on his performance evaluations. In addition, I read the numerous character reference letters provided to the court from various individuals who know Respondent in both personal and professional capacities. I have no reason to doubt the sincerity of the individuals who wrote on behalf of Respondent. However, those personal relationships and professional achievements are

not sufficient to excuse the poor judgment displayed by Respondent during this off-duty altercation, nor are they persuasive regarding penalty.

In the instant matter, Respondent committed serious misconduct when he wrongfully displayed his firearm to the occupants of a moving vehicle, while he himself was driving, in the midst of what amounted to a road rage incident. His actions had the potential to cause serious injury to himself and the occupants of the red sedan, as well as anyone else driving on the crowded highway near them. I credit Respondent's testimony regarding how the events unfolded and that he feared for his safety. His version of events on the stand was consistent with the account he provided during his interrogation by the New York State Police that occurred approximately two weeks after the altercation. (Dept. Ex. 1 and 1A)

However, even taking into account Respondent's alleged concerns for his safety, the interaction did not rise to the level that would justify Respondent drawing and displaying his weapon. In light of Respondent lowering his window while they both drove, it stands to reason that the complainant would roll his window down to respond. Respondent readily acknowledged that he did not see a weapon held by either occupant. Respondent could have utilized other safer options to get away from the perceived threat.

With regard to the failure to notify the NYPD's Operation's Unit after the altercation, at the time of the incident Respondent had been working for the NYPD for over nine years and had achieved the rank of Detective. Even if he was unsure whether the occupants of the other car had seen his gun, Respondent should have known that he was obligated to make appropriate notifications after identifying himself as a police officer and drawing his weapon. I found his explanation that he was "frazzled" and did not have details regarding the other car to be a self-serving attempt to excuse his misconduct. It seems more likely that Respondent did not report the

incident in the hope that the driver of the other vehicle would not call 911 and the incident would never come to light. Indeed, Respondent must have been aware of his reporting obligations because once he realized that the New York State Police were investigating, he immediately made all of the required notifications.

For the foregoing reasons, I find that in the instant matter no mitigation is warranted. Following his arrest, Respondent was suspended from duty without pay from June 13, 2023 until July 12, 2023. I recommend the presumptive penalty for each specification for a total forfeiture of twenty (20) suspension days, which he has already served, and that the additional ten (10) suspension days previously served be restored to him.

Respectfully submitted,

Handwritten signature of Anne E. Stone in black ink, followed by the initials "PM" in a stylized, slanted font.

Anne E. Stone

Assistant Deputy Commissioner Trials

DISAPPROVED

NOV 18 2025

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
DETECTIVE RICHARD ZIMMER
TAX REGISTRY NO. 956082
DISCIPLINARY CASE NO. C-031640

Respondent was appointed to the Department on January 8, 2014. On his most recent performance evaluations, he received 4.5 ratings of “Extremely Competent/Highly Competent” in 2022 and 2023, and was rated “Exceeds Expectations” for 2020. Respondent has been awarded two medals for Excellent Police Duty.

In 2019, Respondent forfeited fifteen (15) vacation days after pleading guilty to being out of his residence while on Chronic Sick Leave. In connection with that case, he was placed on Level 1 Disciplinary Monitoring from June 2019 to June 2020.

In connection with the instant matter, Respondent was suspended without pay from June 13, 2023, through July 12, 2023.

For your consideration.

Anne E. Stone
Assistant Deputy Commissioner Trials